

APPENDIX C - FORM FAM-PD #7-2
(Family Practice Directive #7)

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN

(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER _____

RESPONDENT _____

REQUEST FOR A JUDICIAL CASE CONFERENCE
(FAMILY LAW PROCEEDING)

1. This Request is made by: _____ (name /petitioner/respondent) and is:
 - ☐ An initiating request for a Judicial Case Conference
 - ☐ A response to a request for a Judicial Case Conference that was served on me, and:
 - ☐ No Judicial Case Conference date has been scheduled yet;
 - ☐ A Judicial Case Conference has been scheduled for _____
2. I understand that before a matter can be scheduled for a chambers hearing, the parties must participate in a judicial case conference. I intend to apply to the court for relief and request that the court schedule a judicial case conference in this matter.
3. I intend to apply to the Court for the following relief/remedy: *(Identify the relief being sought along with whether that relief is procedural, substantive, interim, final or a variation of an interim or final order.)*

A draft order/judgment setting out the precise relief or remedy sought is attached.

4. I am asking that a judicial case conference be set on an expedited basis as the relief is time sensitive in nature:

☐ NO ☐ YES If yes, explain:

5. A brief summary of the factual basis for the relief being sought is as follows:

6. The legal grounds for seeking this relief/remedy are as follows: *(Set out the statutory provision, rule, order or other legal basis on which the applicant(s) relies to justify the relief being sought.)*

7. The opposing party is _____ *(petitioner/respondent)*.

- ☐ The opposing party was served with a copy of this Request at least three days before it was filed with the court. Attached is proof of service on the opposing party, or
- ☐ The opposing party has not been served with a copy of this Notice and draft order for the following reason(s):

8. The following efforts have been made to resolve these issues out of court:

9. The following relief is consented to by the opposing party: *(Identify the relief that you anticipate the opposing party will consent to.)*

10. Pleadings are closed: *(See Rule 15-13)*

☐ YES ☐ NO *If no, explain:*

11. If a claim has been made for child or spousal support, has a sworn Financial Statement in Form 15-47 been filed? *(See Rules 15-47 and 15-48 respecting when a financial statement is required.)*

☐ YES ☐ NO *If no, explain:*

12. If a claim has been made for property, has a sworn Property Statement in Form 15-49 been filed? (*See Rules 15-49 and 15-50 respecting when a property statement is required.*)

☐ YES ☐ NO *If no, explain:*

13. If a claim has been made for parenting or child support, the parties have attended the Parenting After Separation course within the last 24 months:

Petitioner ☐ YES ☐ NO

Respondent ☐ YES ☐ NO

14. The parties have complied with the family dispute resolution requirements pursuant to s. 7-4 of *The King's Bench Act*, SS 2023, c 28?

☐ YES ☐ NO

If no, why not?

If you are seeking an exemption, what is the basis of your request:

15. The following is a summary of other related proceedings and applications pending in this action:

a) Other case conferences pending:

☐ none

☐ returnable on _____

b) Chambers applications pending:

☐ none

☐ returnable on _____

☐ reserved on _____ by Justice _____

c) Pre-trial: ☐ Not scheduled ☐ Scheduled for: _____

d) Trial: ☐ Not scheduled ☐ Scheduled for: _____

- e) Are there any other legal proceedings (including criminal, family, family or interpersonal violence, and/or Child and Family Services) involving these parties in any other Court?

☐ none

☐ yes (provide particulars):

16. I understand that once a date is set for a judicial case conference, the court will send me a Notice of Judicial Case Conference that I will be required to serve on the opposing party prior to the date set for the judicial case conference.

17. I understand that if I am represented by a lawyer, my lawyer can attend the judicial case conference on my behalf unless I am ordered by the judge to be personally present. If I am self-represented, I will be required to attend the judicial case conference in person unless leave to participate by phone is granted in advance.

18. Judicial case conferences are scheduled on Thursdays in the afternoon and Fridays in the mornings and afternoons. I am available to participate in a judicial case conference on:

☐ Any date set by the court; or

☐ First choice: _____

☐ Second choice: _____

19. The address where the court can provide me with the Notice of Judicial Case Conference (address for service) is as follows:

- a) Where represented by a lawyer:

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

or

- b) Where party is self-represented:

Name of party: _____

Address for service: _____
 (set out the street address)

Telephone number: _____

Fax number (if any): _____

Email address (if any): _____

DATED at _____, Saskatchewan, this _____ day
 of _____, 2_____.

 (signature of petitioner or respondent)

 (print name of party)

NOTICE TO RESPONDENT

If you have been served with a Request for a Judicial Case Conference, consult Family Practice Directive #7, which sets out the process for Judicial Case Conferences [JCC] and sets out your rights and obligations. Family Practice Directive #7 can be found at the following link: <https://sasklawcourts.ca/kings-bench/rules-practice-directives/>. Additional information on JCCs can be found in the Guide to Judicial Case Conferences at the following link: <https://sasklawcourts.ca/kings-bench/rules-practice-directives/>. Family Practice Directive #7 and the Guide to Judicial Case Conferences are also available in the Registrar's Offices in Saskatoon and Regina.

At least two days prior to the JCC, you are required to serve and file a Judicial Case Conference Appearance Memo in the form prescribed by Family Practice Directive #7.

If you have questions or require information about the JCC process, or wish to adjourn the JCC with the consent of all parties, please contact the Family Law Screening Officer in the appropriate judicial centre:

Saskatoon	Regina
Brenden Prokopchuk Email: brenden.prokopchuk@gov.sk.ca Phone: 306-933-7303 Fax: 306-933-5703	Carly Sigda-Holyoak Email: carly.sigdaholyoak@gov.sk.ca Phone: 306-787-5418 Fax: 306-787-7217

If you have questions or need information about family violence and supports for people experiencing family violence, please contact the Family Law Screening Officer to book an intake assessment.